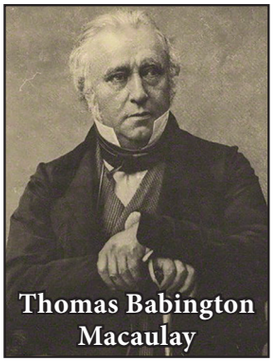
Indian Penal Code


Thomas Babington Macaulay

The Indian Penal Code is the criminal code of India. It is a comprehensive code intended to cover all substantive aspects of criminal law. The code was drafted in 1860 on the recommendation of the first law commission of India established in 1834. It came into force in British India during the early British Raj period of 1862. The objective of this act is to provide a general penal code for India.

The Indian Penal Code has a basic format, it is a document that lists all the cases and punishments that a person committing any crimes is liable to be charged. It covers any person of Indian citizenship. The exceptions are the military and other armed forces, they cannot be charged based on the Indian Penal Code. They have a different set of laws under the Indian Penal Code as well. The Indian judicial system is one that has evolved into a stable and fair system of detention and penalizing, after being tested well for several years.

The most important feature of the Indian Penal Code is the impartial nature of judgments promoted by the document. The code stands alike for government employees, as for common man, and even for a judicial officer. It prevents any sort of corruption or misuse on the part of the people in power.

Lok Adalat

Lok Adalat is called as people's court. 'Lok' stands for people, 'Adalat' is court. The Advent of legal services Authority's Act, 1987 gave as statutory status to Lok Adalat. The disputes are settles through mutual agreement between the parties. It is otherwise called speedy settlement of disputes.

Glossary

- **Constitution:** It is a body of fundamental principles or established precedents according to which a state or other organization is acknowledged to be governed.
- **Judiciary:** It is the system of courts that interprets and applies the law in the name of the state.
- **Fundamental Rights:** They are a group of rights that have been recognized by the Supreme Court as requiring a high degree of protection from government encroachment. These rights are specifically identified in the Constitution.
- **Trial:** It is a formal meeting in a law court, at which a judge and jury listen to evidence and decide whether a person is guilty of a crime.
- **Trial by Jury**: It is a lawful proceeding in which a jury makes a decision or findings of fact. It is distinguished from a bench trial in which a judge or panel of judges makes all decisions.
- **Judicial Review:** It is a process under which executive or legislative actions are subject to review by the judiciary.
- **Judicial Restraint:** It is a theory of judicial interpretation that encourages judges to limit the exercise of their own power.

12th_Political Science_Unit_4.indd 80 12/6/2022 12:54:56 PM